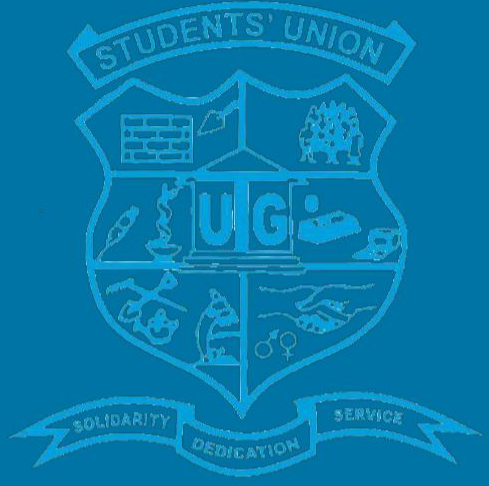


THE UNIVERSITY OF THE GAMBIA STUDENTS UNION

Constitution 2021

FIINAL DRAFT

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COMMISSIONER JAINABA JATTA (Deputy Chairperson)

COMMISSIONER AMADOU BAH (Acting Secretary General)

COMMISSIONER OMAR CONTEH

COMMISSIONER TOLUWALOPE A. SOSANWO

COMMISSIONER MARIAMA SINGHATEH

COMMISSIONER ABDOU KARIM BADJIE

COMMISSIONER BUBACARR SAMBOU

COMMISSIONER MODOULAMIN CONTEH

COMMISSIONER MUSA K. JORBATEH

COMMISSIONER ALHAGIE KASSAMA

COMMISSIONER JAINABA MBOWE

COMMISSIONER MUHAMMED LAMIN GIBBA

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PREAMBLE

We the Students of the University of The Gambia acting in accordance with Section 42 of the Tertiary and Higher Education Act 2016 and in the spirit of unionism hereby establish the University of the Gambia Students' Union (UTGSU) which shall be governed within the limits and spirit of the provisions of this Constitution. We seek to further academic excellence, support good initiatives and promote values of an open society, national service and respect for rule of law. We endeavor to prevent discrimination on any basis and enable fruitful collaboration within and outside the university and to prepare ourselves for a successful and inspiring future.

We recognize the Students' Union and its organs to be the only competent body to engage the University administration and any other institution, corporation or association within and outside The Gambia regarding any matter that affects or is likely to affect the interest and general wellbeing of the University of the Gambia Students. The University of The Gambia Students' Union has derived their legitimate power from the Students of the University of The Gambia and shall act faithfully to pursue the best interest of the students.

The Students' Union shall take necessary measures to address situations or state of affairs which if allowed occurring or continuing to occur may threaten the interest and general wellbeing of students. In light of the foregoing, we the students of the University of The Gambia hereby acknowledge this constitution in its entirety to reflect our true yearnings and aspirations and therefore wish to be governed and guided by it in all our activities, functions and duties to the University, the Union and The Gambia at large.

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CHAPTER 1: PRELIMINARY

Section 1: Citation

(1) This Constitution shall be cited as "The University of The Gambia Students' Union Constitution 2021."

Section 2: Interpretation

In this Constitution except where the context otherwise requires-

(a) **Academic Year** means the two semesters in accordance with the University of the Gambia Calendar.

(b) **Working Day** means public working days.

(c) **Union** means University of The Gambia Students' Union.

(d) **Constitution** means the Constitution of the University of The Gambia Students' Union 2021.

(e) **Member** means a student enrolled in the University of The Gambia.

(f) **Dues** mean a prescribed monetary sum to be paid by each member to the Union.

(g) **Upper Class** means students who are in 3rd year and above of their program.

(h) **Electoral Commission** means the body responsible for conducting students' elections within the

(i) **Independent Electoral Commission** means the established national body responsible for conducting elections throughout the country.

(j) **Sub-association** means all faculty-based associations and any other association that is accordingly registered under the Union.

(k) **General Students' Body** means a unit of enrolled students of the University of The Gambia.

(l) **Executive Council** means the members of the Executive of the University of The Gambia Students' Union.

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(m) **Students' Legislative Body/ Legislative Body** mean the legislative arm of the Union established by this Constitution.

(n) **Bill** means a proposed draft to amend any provision of this Constitution.

(o) **Students' Judicial Tribunal/ Judicial Tribunal** mean the judicial arm of the Union established by this Constitution.

(p) **Brief** means a written argument prepared by a party for the purpose of a proceeding before the Judicial Tribunal.

Section 3: Name and Address

(1) The name of the Union shall be ," The University of The Gambia Students' Union" and shall be abbreviated as "UTGSU" or "Union"

(2) The Union shall establish a secretariat which shall be housed within the premises of The University of The Gambia.

(3) The Secretariat of The Union shall serve as the headquarters of the Union.

Section 4: Legal Recognition

(1) The University of the Gambia Students' Union constitution is in line with section 42 (2) of the Tertiary and Higher Education Act, and shall be presented to Congress for approval.

(2) The existence and continuity of the Union is hereby recognized by this Constitution as by law established which shall have rights, interests, duties and aspirations, which shall not be inconsistent with the Laws of The Gambia.

Section 5: Seal and Motto of the Union

(1)The Seal of the University of The Gambia Students' Union shall entail the following characteristics:

(a) Wall – Infrastructural Development

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(b) Assemblage of Students Humanity

(c) A Hand Shake- Peace and Solidarity

(2) The motto of The Union shall be read as ‘dedication, service and solidarity.’

Section 6: Supremacy

(1) This Constitution shall be the supreme law of the University of The Gambia Students’ Union regarding all student matters and any other law that is found to be inconsistent or in contravention with any provision of this Constitution, shall to the extent of the inconsistency be null and void.

(2) Notwithstanding Subsection (1), the application of this Constitution shall be limited to matters regarding the Union and in any matter that affects or is likely to affect the interest and general wellbeing of students either directly or by implication.

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CHAPTER 2: OBJECTIVES AND MEMBERSHIP

Section 7: Aims and Objectives

The aims and objectives of the University of The Gambia Students' Union are:

(1) Pursue and safeguard the general interest and welfare of students of the University of The Gambia.

(2) To monitor and safeguard the educational service delivery in the University of The Gambia and take appropriate measures where necessary.

(3) To promote good relationship between its members and close associates.

(4) To dialogue with appropriate stakeholders regarding student matters whenever the need arises.

(5) To endeavor and ensure students of the University of The Gambia speak with one voice on major issues and matters of concern.

(6) To support, participate and complement government educational initiative programs.

(7) To extend support and humanitarian assistance to needy students or groups where possible.

(8) To organize forums, symposiums and any academic program through which views, opinions and ideas of students could be sought and expressed.

(9) To establish and maintain a viable mechanism for resource mobilization and utilization.

(10) To promote standards and values in academics, politics, culture and all aspects of human life worthy of emulation.

(11) To uphold such values and qualities as are espoused by the University to prepare the students for service to the community.

(12) To create and promote regional and international relationship between sister universities/colleges.

(13) To pursue any other undertakings that shall be deemed to be beneficial to the Students Body and the entire University.

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Section 8: Membership

(1) Any person duly enrolled and registered under the University of The Gambia shall become a member of the Union except for those on exchange program.

Section 9: Rights and responsibilities of members

(1) The exercise and enjoyment of rights are inseparable from the performance of duties and obligations and accordingly every student shall:

(a) Uphold the prestige and good reputation of UTG/UTGSU and respect their symbol(s).

(b) Uphold, defend and respect the Union's constitution and the University of The Gambia Act.

(c.) Foster unity, harmony and respect the rights, freedoms and legitimate interest of others and refrain from acting in any manner detrimental to the welfare of other students.

(d) Serve the University by working conscientiously in their chosen occupations.

(e) Use, protect and preserve the University facilities and properties, and refrain from the misuse and waste of resources.

(f) Be loyal to the Union, the University and the country and safeguard its interest.

(g) Cooperate with relevant authorities in the maintenance of law and order.

(h) Protect and conserve the environment of the University of The Gambia and the Nation at large.

Section 10: Cessation of Membership

(1) A student will cease to be a member of the Union when he or she;

(a) Completes his or her program of studies, the indication of which shall be the collection of an attestation.

(b) Is expelled from the University.

(c) Transfer to another University.

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CHAPTER 3: THE EXECUTIVE COUNCIL

Section 11: The Executive Council

(1) There shall be the Executive Council which shall comprise of the following:

(a) President

(b) Vice President

(c) Secretary General

(d) Assistant Secretary General

(e) Minister of Finance

(f) Deputy Minister of Finance

(g) Minister of Social Welfare and Culture

(h) Deputy Minister of Social Welfare and Culture

(i) Minister of Sports

(j) Deputy Minister of Sports

(k) Minister of Information and Communication.

(l) Deputy Minister of Information and Communication

(m) Auditor General

(n) Minister of Technical and Logistics Services

(o) Deputy Minister of Technical and Logistics Services

(p) Minister of Education and Research

(q) Deputy Minister of Education and Research

(r) Minister of Gender and Health.

(s) Deputy Minister of Gender and Health.

(s) Minister of Agriculture and Environment

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(t) Deputy Minister of Agriculture and Environment

(u) Minister of Justice

Section 12: Functions of the President

(1) The President shall discharge the following functions:

(a) He or she shall be the head of the Union and the leader of the Executive Council.

(b) He or she shall be responsible for the supervision, and co-ordination of the functions of the Executive Council.

(c) He or she shall be accountable for the supervision, maintenance and management of the Union's properties.

(d) He or she shall be the embodiment of the Students' Union.

(e) He or she shall protect, preserve and defend the good image of The Union in accordance with the constitution.

(f) He or she shall preside over all meetings of the Executive Council and shall impartially direct the proceedings of such meetings.

(g) He or She shall preside over Congress for the dissolution of the Legislative Body.

(h) He or she shall have the mandate to take appropriate actions against any Executive member(s) whose action(s) and/or omission(s) is/are contrary to the interest of the student body and the dictates of the constitution. This shall be done in consultation with the remaining executive members. Nevertheless, the President cannot terminate the services of Executive Council member(s).

(i) He or she shall have the deciding vote as the presiding officer in case of a tie during voting in the Executive Council. He has only one vote.

(j) He or she shall discharge all the functions of his office and those incidentals thereto in accordance with this Constitution.

(k) He or she shall be a signatory to the union's account.

(l) He or she shall approve all petty cash payments and defend any expenditure exceeding Seventy Five Thousand dalasi (D75, 000) before the Students' Legislative Body.

(m) He or she shall have the power to veto any decision at Executive Council meetings, but this power is not binding. The Executive Council shall meet again on the same issue with a quorum of two-third (2/3) of the

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Executive Council and where voting becomes the deciding factor, then the issue shall be decided by a simple majority.

(n) He or she shall have the mandate to authorize spending of the Union.

(o) He or she shall represent the students of the university at the University of The Gambia Governing Council.

(p) He or she shall represent the students of the University at the University of The Gambia Alumni Association.

(q) He or she shall be responsible for receiving visitors of the Union on behalf of the Union members.

(r) He or she shall present a semester activity report to the Students' Legislative Body outlining the activities of the Executive Body in that semester and answer any question from the Legislative Body members.

(s) Exercise such other powers as conferred on him/her by this Constitution.

Section 13: Functions of the Vice President

(1) The Vice President shall discharge the following functions:

(a) He or she shall act in the absence of the President and assume the duties and responsibilities conferred upon the President by the constitution.

(b) He or she shall consult with the Education and Research Minister to organize and execute the orientation Programmes for the new students into the University of The Gambia.

(d) He or she shall be the principal assistant to the President and shall discharge all other duties assigned by the President.

(e) He or she shall represent the Students' Body at the Senate.

(f) He or She may perform such duties as assigned to him or her by the President from time to time.

Section 14: Functions of the Secretary General

(1) The Secretary General shall discharge the following functions:

(a) He or she shall be responsible for all official correspondences of The Union and shall take minutes of meetings of the Executive Council and Congress.

(b) He or she shall prepare a written agenda for Executive Council meetings in consultation with the President, and issue notice to convene such meetings.

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(c) He or she shall prepare a written agenda for Congress in consultation with the Speaker of the Legislative Body and issue notice to convene such meetings.

(d) He or she shall have an active file of all correspondences/letters and shall append his or her signature on all correspondences/letters of the Union.

(e) He or she shall present a quarterly report to the Executive Council and terminal report to Congress.

(f) He or she shall be responsible for recording, filing, documenting and transfer of all union activities and documents for succeeding Executive Council.

(g) He or she shall be signatory to the union's account.

(h) He or she shall oversee the activities of all Sub-associations registered under the Students' Union.

(i) He or she shall be responsible for the registration of all student bodies within the University.

(j) He or She shall act or deputize for the President in the absence of both the President and Vice President.

(k) He or She may perform such duties as assigned to him or her by the President from time to time.

Section 15: Functions of the Minister of Finance

(1) The Minister of Finance shall discharge the following functions:

(a) He or she shall be responsible and accountable for all financial transactions of the Union.

(b) He or she shall be a signatory to the Union's account.

(c) He or she shall be responsible for the collection of all Union dues.

(d) He or she shall ensure all incomes and expenditure of the Union is accounted for and recorded.

(e) He or she shall be responsible for strategizing means of generating revenue for the Union.

(f) He or she shall present and defend the annual budget of the Union before the Students' Legislative Body.

(g) He or she shall present an audited financial report to the student body at least three (3) working days prior to congress.

(h) He or She may perform such duties as assigned to him or her by the President from time to time.

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Section 16: Functions of the Minister of Welfare and Culture

(1) The Minister of Welfare and Culture shall discharge the following functions;

(a) He or she shall consult with the Vice President for providing and maintaining students' support services.

(b) He or she shall be responsible for organizing all social activities, programs and events involving the Union in the University.

(e) He or she shall advise the Executive Council on all Welfare and cultural matters.

(f) He or she shall collaborate with any student body in organizing social and cultural activities.

(g) He or She may perform such duties as assigned to him or her by the President from time to time.

Section 17: Functions of the Minister of Education and Research

(1) The Minister of Education and Research shall discharge the following functions:

(a) He or she shall be responsible for making follow ups on all unpublished and missing grades of students.

(b) He or she shall be responsible for coordinating all research activities the students may want to embark on.

(c) He or she shall be responsible for organizing educational activities.

(d) He or she may organize tutorial classes for students of the University and may set up foundation classes for students in grade 12.

(e) He or She may perform such duties as assigned to him or her by the President from time to time.

Section 18: Functions of the Minister of Agriculture and Environment

(1) The Minister of Agriculture and Environment shall discharge the following functions:

(a) He or she shall be responsible for promoting and coordinating all agricultural and Environmental activities of The Union.

(b) He or she shall organize and supervise environmental cleansing and preservation exercises within and outside the university.

(c) He or she shall be responsible for all agricultural research and field work services.

(d) He or she shall be the custodian of The Union farm(s) and farm implements.

(e) He or She may perform such duties as assigned to him or her by the President from time to time.

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Section 19: Functions of the Minister of Sports

(1) The Minister of Sports shall discharge the following functions:

(a) He or she shall be responsible for organizing and co-coordinating all sporting activities of The Union;

(b) He or she shall explore and adopt suitable means of improving the standards of sporting activities in the University;

(c) He or she shall publish information to update the students on the sporting activities of The Union;

(e) He or she shall organize the UTG sports Day once every year

(f) He or she shall organize sporting activities every semester including interschool tournaments.

(g) He or She shall work in co-operation with the Directorate of sports and recreation of the University of The Gambia on all matters relating to sports.

(h) He or she shall appoint a sports committee which may include all sports ministers of various sub-associations of which he or she shall be the chairperson.

(i) He or She may perform such duties as assigned to him or her by the President from time to time.

Section 20: Functions of the Minister of Information and Communication.

(1) The Minister of Information and Communication shall discharge the following functions:

(a) He or she shall be responsible for publicity and updating students on the Union's activities;

(b) H e or she shall be responsible for generating and disseminating information that affects students;

(e) He or she shall be the liaison officer of the Union;

(f) He or she shall propagate the good image of the Union through the media;

(g) H e or she shall on monthly basis, compile and publish the activities of The Union.

(h) He or She may perform such duties as assigned to him or her by the President from time to time.

Section 21: Functions of the Minister of Gender and Health

(1) The Minister of Gender and Health shall discharge the following functions:

(a) He or she shall implement all activities related to the mainstreaming of gender and health in the Union's programmes.

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(b) He or she shall coordinate all gender-related activities and initiatives that seek to address gender discrimination.

(c) He or she shall help improve the general sanitary conditions within the university.

(d) He or she shall partner with the Minister of Education and Research to organize seminars and symposia on health related matters.

(e) He or she shall be responsible for maintaining the Students' sick bay.

(f) He or She shall liaise with relevant authorities on matters pertaining to the health of the members of the Union.

(g) He or She may perform such duties as assigned to him or her by the President from time to time.

Section 22: Functions of the Minister of Technical and Logistics Services

(1) The Minister of Technical and Logistics Services shall discharge the following functions:

(a) He or she shall be responsible for transport arrangements and any other arrangement incidental there to;

(b) He or she shall facilitate travel and transportation means for all activities of the Union;

(c) He or she shall at the beginning of every semester publish a transport schedule for the student community;

(d) He or she shall cooperate with the relevant authorities for the issuance of student Identity Cards;

(e) He or she shall represent the Union in the transport committee of the University administration.

(f) He or she shall be responsible for all venue arrangements and any other arrangement incidental thereto. This shall be done in consultation with the welfare minister.

(g) He or She may perform such duties as assigned to him or her by the President from time to time.

Section 23: Functions of the Auditor

(1) The Auditor shall discharge the following functions:

(a) He or she shall be responsible for auditing the accounts of the Union;

(b) He or she shall Countersign all statements of account(s) of The Union;

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(c) He or she shall Certify that money charged on the Union's account and expended has been applied for the purpose for which it was so charged or appropriated, and that expenditure conforms to the authority that governs it;

(d) He or she shall quarterly submit the Union's audited report on the financial statement prepared by the finance minister to the Students' Legislative Body, Executive Council and shall present it to the general student body at Congress;

(e) He or she shall audit the performance of all executive members in the execution of their duties and submit a comprehensive report to the Students' legislative body and present it to the general student body at Congress.

(f) He or she shall draw attention to any irregularity in the audited accounts, and to any other matter(s) which in his or her opinion ought to be brought to the notice of the Executive Council and general student body.

(g) He or she shall give advice to the Minister of Finance on the adoption or establishment of a reliable, transparent and accountable financial system.

(h) He or She may perform such duties as assigned to him or her by the President from time to time.

Section 24: Functions of the Minister of Justice

(a) The Minister of Justice shall be appointed by the President in consultation with the Executive Council subject to the approval of the Legislative Body within seven (7) days of the presentation of the request.
(b) If the Legislative Body rejects the person nominated by the president to serve as the Minister of Justice, it shall not again reject the person nominated to replace him or her.
(c) He or She shall be an upper-class law student and shall have at least two semesters left for study.
(d) He or she shall be competent person to proffer legal advice to the Union and represent the Union in matters of adjudication before the UTGSU Judicial Tribunal.
(e) He or She shall investigate all matters affecting the Union.
(f) Subject to the provisions of this constitution, the Minister of Justice shall not be subjected to elections.
(g) He or She shall be responsible for any other duties assigned to him or her by the Executive or Congress.
(h) He or She shall appoint a committee of which he or she shall be the chairman.
(i) He or She may perform such duties as assigned to him or her by the President from time to time.

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Section 25: Functions of Assistant Secretary General and Deputy Ministers

(1) The Assistant Secretary General and Deputy Ministers shall discharge the following functions:

(a) He or she shall be the principal assistants to their respective areas of concentration.

(b) He or she shall assume the responsibilities of their heads in case of absence;

(c) He or she shall execute all other duties assigned to him or her by the heads.

Section 26: Functions and Powers of the Executive Council

(1) The Executive Council shall be coordinating and implementing the decisions of Congress.

(2) The Executive Council shall be responsible for upholding and defending the interest of the Union within the framework of the Constitution.

(3) The Executive Council shall meet the appropriate authorities and individuals within and outside the University on matters affecting the union.

(4) The Executive Council shall take emergency decisions on issues as they come on behalf of the Union and shall be communicated within seventy-two (72) hours to the general student body.

(5) Subject to other provisions of this constitution, the Executive Council shall appoint an interim Executive Council member(s) in case of vacancy before **a by-election is held.**

(6) The Executive Council shall inform the general student body of any development taken in accordance with subsection (5) of this section within Seventy-two (72) hours.

(7) Executive Council member(s) shall attend all meetings on time and participate as provided by the constitution.

(a) Failure to attend two (2) consecutive meetings must be backed by genuine explanation in writing, failure of which the Secretary General shall write to the person(s) concerned for explanation.

(b) If the said person(s) still fail to comply, he/she may be suspended from the Executive Council.

c) The duration of this suspension shall be determined by the Executive Council but shall not exceed two months.

(8) The Executive Council shall have the power to represent The Union in entering into any contract or transaction with other bodies.

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(9) The Executive Council shall spearhead, monitor, encourage, promote and strengthen the faculty representatives and associations, clubs, organisations or societies in the university.

(10) Executive Council members may attend Sub-association meetings upon invitation.

(11) An Executive member(s) shall not ask for personal favor(s) in any form from an individual or bodies in the execution of their duties.

(12) Where an Executive Member(s) under the name of the Students' Union receive a gift, grant or an award thereof; shall be presumed to be the Union's property until a contrary intention is proven to that effect.

(13) Executive Council member(s) shall not undertake any activity inconsistent with their official positions and expose themselves to situations which carry with it risk of a conflict developing between their official interests and their private interest.

(14) No Executive Council member(s) shall hold Executive position of any legally constituted student body within the University while serving the Students' Union.

Section 27: Meetings of the Executive Council

(1) The Executive Council shall meet at least once every month;

(a) The time and date for such meetings shall be communicated to Executive Council members by the Secretary General 72 hours before the proposed date.

(b) Special meetings may be summoned by any member of the Executive Council provided that the member concerned has written a letter to the Secretary General to that regard forty-eight hours prior to the meeting.

(c) The Secretary General shall thereafter inform all Executive members of the proposed special meeting stating the agenda of the meeting forty eight hours (48hrs) before the proposed meeting.

(d) Executive Council meetings shall be presided over by the president or the Vice-president where the president is absent.

(e) Notwithstanding subsection (d) of this Section, the Secretary General or any other Executive Council member may preside over Executive Council meetings when assigned to by the president provided the Vice-President is not present.

(f) Where any member of the Executive Council presides (other than the President) at any sitting, he or she shall assume the presiding functions and powers of the president.

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(g) The quorum for any Executive Council meeting including special meetings shall be two-third (2/3) of all members of the Executive Council including the President and or the Secretary General.

(h) Without prejudice to other provisions of this constitution, decision making in the Executive Council shall be determined by a simple majority (50+1%).

(i) The Executive Council reserves the right to invite anyone as an observer and that person may take part in any deliberation or discussion that is before the Council but shall not take part in the decision making.

(j) Members of the appointed committees/commissions of The Union may, at the invitation of the Executive Council, attend Council meetings for questioning or clarification.

(k) Minutes of the executive meetings are Public Documents and any member of the University community has the right, subject to fair procedural arrangements made by the Secretary General, to inspect the minutes of all previous meetings of the executive.

Section 28: Removal and Resignation of Officials

(1) Any Executive Council Member who wishes to resign shall give fifteen days (15) notice and shall write a letter to the Secretary General highlighting reasons for his or her resignation. The Secretary General shall thereafter inform the rest of the Executive and the general student body.

(2) In the case of the Secretary General his or her letter of resignation shall be tendered to the President who shall ensure that general student body is notified before and during Congress.

(3) The Executive Council shall meet within a week to consider any resignation and the resignation referred to in subsection (1) or (2) respectively of this section shall only take effect when honored by the Executive Council.

(4) Any member of the Executive Council shall at any time be removed from office when a vote of No-confidence is passed on him or her by at least two third of congress as a result of:

(a) Abuse of office;

(b) Willful violation of the general objectives of the UTGSU Constitution;

(c) Incompetency; and/or

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(d) Medical/Mental incapacity

(5) The President shall not have the power to remove an Executive Council member, but shall have the power to suspend an Executive Council member in consultation with the Executive Council and the aggrieved party may seek redress from the Judicial Tribunal.

(6) The Secretary General or his or her Assistant where the Secretary General is the affected person shall inform the Chairperson of the Electoral Commission in writing of any vacancy due to resignation to conduct by election for the said post.

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CHAPTER 4: THE STUDENTS' LEGISLATIVE BODY

Section 29: Establishment of the Students' Legislative Body

(1) There shall be the Students' Legislative Body which shall be headed by a Speaker, who shall be assisted by a Deputy Speaker.

(2) The Legislative Body shall exercise all the legislative functions of the Union.

(3) Members of the Legislative Body shall serve tenure of one academic year.

(4) Each school/ faculty-based Sub-association within the University shall nominate one person to the Congress for approval for the composition of the Student's Legislative Body.

(5) That person shall be nominated by at least thirty (30) students from the school/faculty-based sub-association he/she is from.

(6) In fulfillment of sub-section (5), the person shall submit a nomination form to congress, issued by the executive of the faculty based association he/she is from, consisting of the names, matriculation number and signature of at least thirty (30) students from his or her school/ faculty-based sub-association.

(7) Congress may refuse the recommendation of a person by absolute majority and the school or faculty concerned shall recommend another person through its Association who shall be subject to the approval of the Executive Council within two weeks.

(8) The selection of the members of the Legislative Body referred to in Subsection (4) shall only take place after the dissolution of the Legislative Body by the Executive Council two (2) weeks before the first Congress of the academic year.

(9) The Secretary General of the UTGSU shall notify in writing sub associations to send in the names of their candidates with the necessary details for approval of Congress to serve in the Legislative Body.

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(10) The selection of candidates by Sub-associations or clubs to serve in the Legislative Body shall be done in utmost good faith which shall be premised on experience and demonstration of high level of competence.

(11) A candidate shall not be qualified to serve in the Legislative Body if he or she does not have at least two (2) semesters left for study.

Section 30: Functions of the Students' Legislative Body

(1) The Students Legislative Body shall hear and determine in the following matters:

(a) Proposed amendment bill of any provision of the UTGSU Constitution.

(b) The defending of annual budget(s) of the Executive Council and any other monetary appropriation outside the budget.

(c) The justification of any withdrawal from the Union's account(s) exceeding the amount of seventy five thousand dalasi (D75, 000).

(d) Any contentious or urgent matter that is or is likely to affect the interest and or the general wellbeing of the Students of the University of the Gambia.

(e) Deliberation on any matter that requires the approval of the Legislative Body.

(f) A semester activity report of the president outlining the activities of his or her Executive.

(g) The scrutiny of the budget and policy document of the Executive Council both of which should be submitted to the Legislative Body within 50 days after coming into office of the Executive Council.

(h) The speaker of the students' legislative body shall preside over the congress subject to section 12 paragraphs (g), and shall impartially direct the proceedings of the congress.

(i) In the event the speaker is absent, the deputy speaker shall preside over the congress, and shall impartially direct the proceedings of the congress.

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Section 31: Power to Investigate and Request for documents

(1) The Legislative Body has the power to investigate on matters that is or is likely to affect the interest and or the general wellbeing of the Students of the University of the Gambia.

(2) The Legislative Body has the power to request in writing for any document of interest from the Executive of the students' union and affiliates during the investigations provided for under subsection (1).

(3) The Executive of the Students' Union and affiliates shall handover the documents requested by the Legislative Body.

Section 32: Responsibilities of the members of the Legislative body

(1) All members shall maintain the dignity of the Legislative Body both during the sittings of the Legislative Body and in their acts and activities outside the Legislative Body.

(2) All members shall regard themselves as servants of the student body, desist from any conduct by which they seek improperly to enrich themselves or alienate themselves from the students, and shall discharge their duties and functions in the interest of the students and in doing so, shall be influenced by the dictates of conscience and the students' interest.

Section 33: Sittings and Proceedings of the Students' Legislative Body

(1) The Students' Legislative Body shall not sit for more than ten (10) times every semester.

(2) Notwithstanding subsection (1) of this section, the Legislative Body may sit consecutively or otherwise at any other time to address urgent and contentious matters including impeachment motions.

(3) The Speaker of the Students' Legislative Body shall preside over all the sittings of the Legislative Body.

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(a) In the event the Speaker is absent, the Deputy Speaker shall preside over the sitting and assume the responsibilities due to the Speaker.

(b) The Speaker shall reserve the power to discipline and suspend any Legislative Body member for any breach of procedure or indiscipline in accordance with the Legislative Body rules.

(4) The Speaker shall decide the venue for the sittings of the Legislative Body within the University of the Gambia.

(5) The sittings of the Legislative Body shall be open for all students to attend.

Section 34: Introduction of bills and motions

(1) Members of the Legislative Body can introduce bills or motions to the Legislative Body except bills or motions that:

(a) Seek to impeach an Executive Council member.

(b) Seek to amend any provision of the Constitution

(2) Every student shall have the right to file a bill or motion at the Legislative Body for the impeachment of an Executive Council member or for the amendment of any of the provisions of this Constitution provided that such a bill or motion is supported by at least two hundred (200) active students with at least ten (15) students from each School/ Faculty in the University whose names, matriculation numbers and signatures must be appended on a paper attached to the bill or motion.

(3) Any bill presented before the Legislative Body for the amendment of any of the provisions of this constitution, shall;

(a) Go through first reading which shall be the official introduction of the bill at the Legislative Body for preliminaries.

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(b) Go through second reading on another sitting where the Legislative Body members shall debate over the motion forwarded by the person concerned and at the end of the debate, the speaker shall call for votes where absolute majority will be required to pass the bill.

(c) Where there is a tie, the Speaker shall have the deciding vote.

(6) Where the bill is passed in line with subsection (3) (b), the bill shall be forwarded to the Committee of Experts of the Legislative Body to draft the proper language of the bill which shall be presented to the president of the Students' Union for assent within seven working days.

(7) The bill shall become a law when assented to by the president and shall come into force on that day or on a future date as may be determined by the Legal Adviser of the Union.

(8) Where the president failed to assent to the bill after the expiration date, he or she shall forward his or her reasons for failing to assent to the bill to the Speaker and the Speaker through the Clerk shall present the matter to Congress for determination and such determination shall be final.

Section 35: The Clerk and Records of the Legislative Body

(1) There shall be a Clerk of the Legislative Body who shall be the administrative head of the Legislative Body and shall be in charge of all the records of the Legislative Body.

(2) The Clerk shall take note of all the proceedings of the Legislative Body and shall make available copies of the proceedings of the Legislative Body to interested persons and the Minister of Information and Communication of the Union for circulation where necessary.

(3) All the records of the Students' Legislative Body shall be kept electronically or in any other reasonable form and made available in hard copy to interested persons.

(4) The Clerk shall brief Congress on all the activities of the Legislative Body.

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Section 36: Selection of the Speaker, Deputy Speaker, Clerk and Ass. Clerk

(1) The President shall nominate three individuals amongst the members of the Legislative body from whom one of them shall be elected by the members of the students' legislative body to serve as the speaker of the students' legislative body.

(2) The Principal arbitrator of the Judicial Tribunal shall preside over the election of the speaker.

(3) The Deputy Speaker, the Clerk and his or her Assistant shall be elected from the Legislative Body by members.

Section 37: Source of Funding of the Students' Legislative Body

(1) The Students' Union shall be the main funder of the Students' Legislative Body.

(2) The Legislative Body shall submit an annual budget to the Minister of Finance, and it is subject to the approval of at least 1/3 of the Executive.

(3) The Students' Legislative Body shall be entitled to sitting allowances which will be determined by the Executive Council.

Section 38: Resignation of Legislative Body members

(1) A member may resign by writing to the Speaker or the Clerk where the Speaker is the subject matter highlighting his or her reason(s) for resignation and upon receiving the letter, the Speaker or the Clerk shall inform the Executive Council of the resignation.

(2) The Executive Council shall write to the Sub-association of the school or faculty concerned requesting the nomination of a new member who shall complete the tenure of his or her predecessor.

(3) In case of any resignation, the candidate appointed by a Sub-association to take the place of the resigned person shall not be subject to Congress approval, the person appointed shall be deemed to serve in the Legislative Body on the ticket of the resigned person previously approved by Congress.

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(4) If the office of the Speaker becomes vacant, the Deputy Speaker shall be selected as the Speaker by the President of the Students Union and shall not be subject to Congress approval.

(5) If the office of the Deputy Speaker or Clerk becomes vacant, the President shall select another member of the Legislative Body to fill up the vacancy, and shall not be subject to congress approval.

Section 39: Power to make Subsidiary Rules

(1) The Students' Legislative Body shall within 30 days of coming into force, come up with their own rules which shall guide the proceedings of the Legislative Body.

(2) The Rules thereof shall be subject to the provisions of this constitution and other laws of the Gambia.

(3) The rules shall clearly state the procedure of proceedings of the Legislative Body.

(4) The Rules shall also state the quorum for a sitting and shall stipulate the disciplinary measures to be taken for breach of any procedure or rule.

(5) The Rules shall establish the Committee of Experts which shall be headed by a member with a background in Law.

Section 40: Impeachment

(1) The Legislative Body shall reserve the right to impeach any Executive Council member.

(2) **E**xecutive Council members may be impeached from office on one of the following grounds;

(a) Willful violation of this constitution or the oath of office.

(b) Abuse of office or serious misconduct that is likely to bring into disrepute the Students' Union.

(c) Mismanagement or embezzlement of the Students' Union funds.

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Section 41: Impeachment Procedure

(1) Any student or Executive Council member may file a motion of impeachment of any executive member and such motion shall be addressed to the Clerk of the Legislative Body and copied to the Secretary General.

(2) Any motion of impeachment filed by a student shall be supported by not less than two hundred (200) active students of the University with at least fifteen (15) students from each school/faculty whose names, matriculation numbers and signatures must be appended on the petition.

(3) The Legislative Body shall only hear a motion of impeachment after verifying that the names and matriculation numbers of signatories of the impeachment motion are genuine.

(4) The president or any Executive Council member can defend impeachment motions filed by the Executive Council and such motions shall be supported by two thirds of members of the Executive Council.

(5) The Clerk shall notify all Legislative Body members of the receipt of an impeachment motion and shall in consultation with the Speaker schedule a sitting within 72hrs after receiving such petition.

(6) Upon convening, the Legislative Body shall hear testimonies from both the petitioner and the person petitioned.

(7) The Legislative Body shall thereafter setup an investigating panel to look into the matter and shall report to the Legislative Body on the outcome of their investigation and advise the Legislative Body accordingly on the way forward in the absence of the parties.

(8) After hearing from the investigating panel, the Legislative Body shall debate and vote on the matter.

(9) The Clerk shall notify the Executive Council of the decision taken by the Legislative Body.

(10) Where an Executive Body member is impeached, the Secretary General or the Assistant Secretary General where the Secretary General is the impeached person, shall write to the impeached person

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informing him or her of his or her expulsion from the Executive Council and such a member shall cease to be a member of the Executive Council.

Section 42: Appeal of Impeachment

(1) An aggrieved party shall have the right to appeal the decision of the Legislative Body to the

(2) An aggrieved party may appeal the decision of the Legislative Body not more than seven (7) working days after being served with the notice of impeachment.

(3) The Registrar of the Tribunal shall inform in writing the parties thereto and the Executive Council of any appeal of impeachment and the date, time and place of such hearing.

(4) The Tribunal shall within fourteen (14) working days after the filling of the appeal decide over the matter and deliver judgment and such judgment shall be final.

Section 43: Amendment of the Constitution

(1) The Students' Legislative Body shall be the only competent body to amend or repeal the provision(s) of this Constitution in accordance with this constitution.

(2) The amended document shall be submitted to Congress and the Executive Council respectively for approval. Congress approval shall be two-third (2/3).

(3) Amendment involves the removal, modification and/or simplification of the word(s), clause(s), phrase(s), in any section of this constitution.

Section 44: Enforcement of Decisions, Recommendations and Resolutions passed by the Legislative Body

(1) All the decisions, recommendations and resolutions of the Legislative Body shall be implemented by the Executive of the Students' Union and all its organs and affiliates.

(2) Congress shall make sure that the Executive of Students' Union or its affiliates do not default in its enforcement responsibility.

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(3) It shall be a sufficient ground to impeach the president or any other Executive Council member if he or she fails to enforce the decisions or resolutions of the Legislative Body.

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CHAPTER 5: THE STUDENTS' JUDICIAL TRIBUNAL

Section 45: Establishment of the Students' Judicial Tribunal

(1) There shall be the Students' Judicial Tribunal which shall be headed by a Principal Arbitrator and assisted by a Registrar.

(2) The Tribunal shall be the judicial branch of the Union and shall exercise all the judicial functions of the Union.

(3) The composition of the Judicial Tribunal shall be five (5) students from across the University.

(4) The members of the Judicial Tribunal shall be nominated by the president of the Students' Union in consultation with his or her Executive members and approved by the Students' Legislative Body.

(5) Notwithstanding subsection (4) of this Section, the Principal Arbitrator of the Judicial Tribunal shall be selected among and chosen from the five (5) selected members of the Tribunal in their first sitting which shall be presided over by the President of the Union.

(6) The Principal Arbitrator must demonstrate a high level of understanding of legal issues.

(7) A candidate shall not be qualified to serve as member of the Judicial Tribunal if he or she does not have at least two (2) semesters left for study.

(8) The members of the Judicial Tribunal shall serve for one academic year.

(9) The Executive Council shall dissolve the Judicial Tribunal two (2) weeks after the expiry of the term of the Judicial Tribunal members and shall select new members in accordance with the constitution not later than fifty (50) days after the dissolution.

Section 46: Jurisdiction of the Students' Judicial Tribunal

(1) The Students' Judicial Tribunal shall have jurisdiction to hear and deliver judgment or opinion in the following matters;

(a) Petition of election results from aggrieved candidate(s).

(b) The interpretation of this constitution and all Sub-association constitutions.

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(c) The question of whether the Executive Council or any individual or authority has violated any provision of this constitution or Sub-association constitutions.

(d) The question of whether the president or any Executive Council member of the Union or any sub-association was validly elected into office.

(e) The petition for redress in any matter that was determined by an authority or by any person acting under an authority within the University of the Gambia Students' Union.

(f) The Judicial Tribunal shall only hear cases affecting the rights and interests of students.

Section 47: Powers of the Principal Arbitrator and other Judicial Tribunal Members

(1) The Principal Arbitrator shall direct the proceedings of the Tribunal and determine the place of sitting of the Tribunal within the University.

(2) The Principal Arbitrator shall be responsible for delivering the judgment or opinion of the Tribunal and such judgment or decision shall be printed.

(3) Notwithstanding subsection (2) of this section, the judgment or opinion of the Principal Arbitrator shall reflect the majority decision of the Tribunal.

(4) Where any Tribunal member holds a contrary view in any case, he or she shall have the right to write a dissenting opinion which shall be attached to the end of the Judgment or opinion.

(5) Notwithstanding subsection (4) of this section, the judgment or opinion delivered by the Principal Arbitrator shall be final in any case.

(6) The Principal Arbitrator may where desirable summon someone for an expert opinion in any case and such opinion may be relied upon by the Tribunal for the outcome of the case concerned.

Section 48: Proceedings of the Students' Judicial Tribunal

(1) The Tribunal shall not sit for more than fourteen (14) times each semester.

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(2) Notwithstanding subsection (1), the Tribunal may sit at any other time to hear or exhaust cases of concern and eminence.

(3) The Tribunal shall, taking into consideration the circumstances of each case, come up with a decision within a reasonable time.

(4) The Tribunal shall in determining any case allow witnesses, evidences either material or real, confessions etc. and attach such weight to the testimonies or evidences as it deems fit.

(5) Parties to the case may appear to defend themselves or be represented by someone who must be a student of the University of the Gambia.

(6) The Tribunal in delivering any judgment or opinion shall be limited to the University of the Gambia Students' Union Constitution but may make reference to other Laws of the Gambia where relevant and necessary.

(7) The decisions reached by the Tribunal shall form part of the laws of the Union.

(8) The sittings of the Tribunal shall be open to all students.

Section 49: Filing of cases

(1) All cases shall be filed with the Registrar of the Tribunal who shall thereafter designate a file number for the case and inform the Principal Arbitrator about the case.

(2) The Registrar shall notify parties to a case at least five (5) days before the mentioning of the case and parties thereto shall submit their briefs at least two days before the sitting.

(3) Election petitions must be filed with the Tribunal within seven (7) working days after the declaration of the election results.

(4) Parties shall adhere to the rules and procedure of the Tribunal in filing cases.

(5) The Tribunal in its rules shall state the initiating processes and the purpose of which each can be used for.

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Section 50: Enforcement of Judgments/ opinions

(1) The Students Union and all its organs shall be responsible for implementing all the decisions, opinions and judgments of the Tribunal.

(2) Congress shall make sure that the Students' Union does not default in its enforcement responsibility.

(3) It shall be a sufficient ground to impeach the president or any other Executive Council member if he or she fails to enforce the decisions of the Tribunal.

Section 51: The Registrar and records of the Tribunal

(1) The Registrar shall be the administrative head of the Students' Judicial Tribunal.

(2) The Registrar shall be nominated by the Principal Arbitrator and approved by the Tribunal.

(3) The Registrar shall keep and be in charge of all the records of the Tribunal and copies of such records shall be kept electronically.

(4) The Registrar shall make copies of the judgments or opinions of the Tribunal available to schools and faculty libraries and students upon request.

(5) The Registrar shall brief Congress on the developments of the Tribunal and the nature of cases before the Tribunal.

Section 52: Source of funding of the Tribunal

(1) The Tribunal shall be funded by the Union and its organs.

(2) The Tribunal members shall be entitled to sitting allowances.

(3) The sitting allowances of the Tribunal shall be determined by the Executive Council.

Section 53: Resignation of Tribunal members

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(1) A member of the Judicial Tribunal may resign from the Judicial Tribunal by writing to the Principal Arbitrator of the Tribunal or the Registrar where the Principal Arbitrator is the subject matter highlighting his or her reason(s) for resignation.

(2) The Principal Arbitrator or the Registrar shall immediately inform the Executive Council of the resignation of the member concerned and such resignation will only come into effect when honored by the Executive Council.

(3) Where the Executive Council honored the resignation of a member of the Judicial Tribunal, the president shall in accordance with this constitution nominate to fill in that position subject to the approval of the Legislative Body.

Section 54: Power to make subsidiary rules

(1) The Tribunal shall within 30 days of coming into force, come up with rules that will govern the proceedings of the Tribunal.

(2) The rules shall clearly state the types and category of cases that will be heard by the Tribunal to give effect to section 46 (5).

(3) The rules shall clearly state the procedure of the Tribunal and what is required from the participants.

(4) The rules shall highlight the penalty attached to contempt of the Tribunal and who can be found wanting.

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CHAPTER 6: FINANCIAL MATTERS

Section 55: Sources of Finance

(1) The Union shall be financed and funded through the following means:

(a) Membership Union Dues: every member shall pay a prescribed amount in installments which shall be as follows:

(i) Sponsored students shall pay the prescribed amount on a monthly basis and the deductions shall be accomplished by appropriate governing authorities/financial controller of the University of The Gambia.

(ii) Privately sponsored students shall pay the prescribed amount in two installments payable at the beginning of every semester, prior to the University course registration.

(b) Organizing fund raising events and activities.

(c) Subventions from appropriate authorities

(d) Endowment/ donations.

(e) Dues from registered societies, clubs and organizations.

(f) Investment avenues.

(2) The moneys that are paid into the University account by students for the purpose of student Union dues shall in total be made available to the Union without the need for defending it before the Finance officer of the University.

(3) Subject to the provisions of this constitution, no due shall be imposed on any student or student body, unless such due is prescribed by the Students' Legislative Body.

(4) Any student or student body that defaults in the payment of the Union dues as provided for in Section 52 (1) (a) shall result in:

(a) Denial of course registration.

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(b) Denial of voting and being voted for.

(c) Forfeiture of some or all the benefits from the Union and or the University

(d) Deregistration.

Section 56: Accounts of the Union

(1) The Union shall bank with any recognized reputable bank in The Gambia and all the monies of the Union shall be paid into such accounts by the Finance Minister of the Union.

(2) The Union's funds shall be allocated as:

(a) The Consolidated Revenue Fund which shall constitute sixty percent (60%) of the overall amount derived from union dues, donations, endowments, subventions, fund raising revenues and investments.

(b) The Consolidated Revenue Funds shall not include Project funds and shall only be expended after the presentation of a Supplementary Budget to the Legislative Body.

(c) Recurrent Budget or Expenditure Fund shall be forty percent (40%) of the overall revenue and shall be spent on operational activities of the Executive Council. This account shall be under the supervision of the Minister of Finance and its spending shall be dictated by the Executive Body.

(d) Project funds shall be funds exclusively raised for special purposes and shall be expended according to the contract agreement with the donor agency. In the absence of the donor agency's specifications, expenditure must be done in accordance with this Constitution.

(3) Withdrawal of monies from the accounts of the Students' Union shall be signed by the Minister of Finance, the Secretary General and the President or Vice-president and such money shall be received by the Minister of Finance.

(4) Any intended withdrawal that is up to seventy-five thousand dalasi (D75, 000) shall before the withdrawal be subject to the scrutiny of the Legislative Body.

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(5) No withdrawal shall be up to hundred thousand dalasi within a month unless approved by the Legislative Body.

(6) All non-budgeted expenditures within the recurrent fund shall be approved by the Executive Council and shall be spent in case of any emergency provided it is approved by the Legislative Body.

(7) Failure to justify the spending referred to in subsection (6) will result in the amount being spent surcharged on the person(s) who spent it;

(8) All spending must be proved by an official receipts or a written countersigned document indicating reasons for such payment/ withdrawal.

Section 57: Congress Finance Committee

(1) There shall be a Congress Finance Committee which shall be headed by the Finance Minister and supported by the Secretary General.

(2) The President shall for the purpose of every Congress temporary appoint five other members to the Committee.

(3) The Committee shall be responsible for the budgeting of Congress and anything incidental thereto.

(4) The Committee shall have no other functions.

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CHAPTER 7: ELECTORAL MATTERS AND CONGRESS

Section 58: Elections

(1) There shall be elections for the Executive Council once every academic year of the University of The Gambia.

(2) Elections shall be held during a semester school days and not during holidays.

(3) The elections referred to in subsection (1) shall be conducted by the Electoral Commission of the Union.

(4) The elections shall be conducted in accordance with the Electoral laws of the Union and The Gambia.

(5) The election process shall commence in the three (3) months before the expiration of the mandate of the incumbent Executive Council.

(6) Handing over and inauguration ceremonies shall be conducted within two weeks after elections.

(7) Elections shall not be held two weeks before the expiration of the mandate of the incumbent Executive Council.

Section 59: Election Procedure and requirements

(1) The elections shall be conducted in secret ballot.

(2) Each student shall have a vote for each position to be contested.

(3) There shall be two (2) weeks of campaign period.

(4) All candidates shall provide typed copies of their manifestos to the Electoral Commission for publication.

(5) The Electoral Commission shall stage a convention for candidates to present and defend their manifestoes before the general student body and shall debate over pertinent issues in the University.

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(6) Representatives of candidates shall be present during elections including casting and Counting of votes.

(7) A Candidate for election shall complete and duly signed nomination form issued by the Electoral Commission and deliver same to the Chairperson of the Commission or anyone acting in his or her capacity.

(8) No Person shall be accepted as a candidate for election to the office of the Executive Council unless his or her nomination form is endorsed by at least twenty (20) students from each School within the University of The Gambia.

(9) If any candidate is nominated and remained unopposed until the time stipulated by the Electoral Commission, he or she shall be duly elected to the post he or she has been nominated for and must be refunded his or her deposit.

(10) Candidates shall present to the Commission a letter of attestation from the Minister of Finance of the Union stating that they have deposited the prescribed amount to the Union before their nomination.

(11) No presidential candidate shall be declared elected on the first ballot unless he or she receives the highest number of votes validly cast at the election. **[Act No. 1 of 2023]**

(12) If, on the first ballot where there are two or more candidates, there is an equality of highest number of votes between the candidates, a second ballot shall be held not later than fourteen (14) days between the candidates who received the highest number of votes. **[Act No. 1 of 2023]**

(12) Where an election petition is successful, the commission shall hold by-election for the position concerned in not more than fourteen (14) days after the decision.

(13) The new Executive Council shall be sworn into office by the Principal Arbitrator of the Judicial Tribunal.

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(14) The outgoing Executive Council shall hand over all records, materials and responsibilities of the Union to the new Executive Council during the handing over ceremony.

Section 60: Qualification for Election

(1) A person shall be qualified for election for the position(s) of President, Vice President, Secretary General and Finance Minister if he or she is Gambian National.

(2) The President, Vice President, Secretary General and Finance Minister shall qualify for these positions if;

(a) He or She is permanently resident in The Gambia.

(b) He or She has a CGPA of 3.0 and above.

(c) He or She manifests evidence of Good Character to the Electoral Commission at the time of the nomination.

(d) He or She has leadership experience

(e) He or She is from the upper class of the University of The Gambia.

(3) Subject to subsection (2), the other positions of the Executive Council shall be open to all bona fide students of the University of The Gambia and shall have a CGPA of at least 2.7.

(4) A candidate for election must have at least two (2) semesters left for study.

(5) He or She has a sound mind.

Section 61: Disqualification for Election

(1) A person shall not be qualified for election if;

(a) He or she has been rightfully terminated from his or her previously held position.

(b) He or she has been guilty of grave misconduct and negligence.

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(c) He or she failed to manifest evidence of good character to the Electoral Commission at the time of nomination.

(d) He or she has been suspended from the university and the suspension has not been revoked.

(e) He or she has been suspended or discontinued from any other university prior to joining the University of The Gambia.

(f) He or she has served as an executive of the Students Union for two (2) terms.

(g) Subject to paragraph (e), he or she served as a president of the Executive Council of the Students Union.

(h) He or she is found guilty of corruption or gross misconduct by the UTGSU Judicial Tribunal.

(i) He or She has been convicted of a criminal offence by a court of law in The Gambia or any other Country.

Section 62: Congress

(1) Congress shall be the general assembly of all the students of The University of The Gambia.

(2) Congress shall be convened at least once every semester.

(3) The President shall summon congress in accordance with this constitution and may summon emergency congress when the need arise.

(4) The Quorum for congress shall be at least two hundred (200) students of all the students of the University of the Gambia, half of which shall not be made up of students from the same school/faculty or department.

(5) Where the quorum is not met in the first congress as required in subsection (4) leading to the postponement of that congress, the succeeding congress shall not observe the quorum.

(6) Notice of congress shall be communicated at least two (2) weeks prior to the date scheduled for the Congress and such notice shall be well publicized.

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(7) Congress shall compose of only the registered students of The University of The Gambia.

Section 63: Functions of Congress

(1) Congress shall have the power to approve or disapprove any matter that is brought before it requiring approval or assent.

(2) Congress may recommend to the Legislative Body to hear any matter that is of concern to students.

(3) Congress shall within the limits of this constitution enforce adherence of the provisions of this constitution.

(4) Subject to the provisions of this constitution, decisions at congress shall be by simple majority.

Section 64: Extra Ordinary Congress

(1) Every student member shall have the right to request for an extra-ordinary congress provided that the request is supported by:

(a) Signatories of three-quarter (3/4) of congressional quorum.

(b) A detailed written agenda stating the reasons for such congress

(2) The request letter and all the necessary documents required in subsection (1) shall be submitted to the Executive Council through the Secretary General.

(3) If the requesting student has met the criteria stipulated in subsection (1) of this section, the Executive Council shall within one (1) week convene an extraordinary congress for that purpose. The Speaker of the Legislative Body shall be the chairperson or the President where the Legislative Body is the subject matter of that congress.

(4) In the event the request for an extraordinary congress was rejected for noncompliance with subsection (1), the matter shall be part of the agenda to be discussed at the first ensuing congress.

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CHAPTER 8: SUB-ASSOCIATIONS, COMMITTEES AND COMMISSIONS

Section 65: Sub-associations

(1) There shall be the University of the Gambia Debate Association (UTG-DA) which shall be the parent body of all debate associations within the University.

(2) UTG-DA shall be the only competent body to organize debating activities between Schools/Faculties within and outside the University.

(3) All Sub-associations shall register with the Union through the Secretary General and send in copies of their Constitutions for approval.

(4) Notwithstanding Subsection (1), if any Sub-association constitution is found to be inconsistent with this constitution the Sub-association shall be forfeited the right to register under the Union.

(5) Sub-associations shall only come into existence after registering with the Union unless otherwise decided by the Executive Council.

(6) The Executive Council shall reserve the right to deny the registration of a Sub-association on grounds of good practice so as to limit and regulate Sub-associations within the University.

(7) Sub-associations upon registration shall pay a prescribed annual fee to the Union which shall be determined by the union.

(8) Sub-associations that are not registered with the Union shall be considered illegal. The Executive shall make recommendation(s) to Congress and University management for appropriate action(s) against such illegal existence and operation.

(9) All registered Sub-associations are eligible to receive support from the Union.

(10) All Sub-associations shall submit their activity plan and budget estimates to the Union not later than thirty (30) school days after elected into office.

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(11) All Sub-associations are expected to inform in writing the Executive Council of their programmes or events two (2) weeks before the proposed programme or event to avoid clash of events.

(12) Where there occurs a conflict of programme between Sub-associations and the Union, priority shall be given to the Union. However, the Union shall endeavor to avoid such conflicts by receiving semester schedules from Sub-associations at the beginning of each semester.

(13) If a Sub-association will suffer a great loss or relevance for postponing its event, the affected Sub-association shall send a letter of plea to the Executive Council through the Secretary General of the Union in order to be given priority to hold that event.

(14) All Sub-associations shall renew their registration with the Union at the beginning of every academic year.

(15) Failure to renew registration shall lead to the suspension of all the activities of the Sub-association and may attract other appropriate measures or actions.

Section 66: Duties and responsibilities of Sub-associations

(1) Membership of Sub-associations shall be voluntary except those of Faculties/Departments/Schools.

(2) All Sub-associations shall strive towards the realization of unity, peace and stability in the University.

(3) No Sub-association shall be allowed to conduct secret or immoral activities that goes against the values and norms of our society or may threaten the peace and stability of the University Community and The Gambia at large.

(4) Any Sub-association upon dissolution shall surrender their assets to the Union which shall thereafter be used for the benefit of the members of the said Sub-association.

(5) Wherein the Union contributes in the acquisition of such assets, it shall take forty-percent (40%) of the value of the asset(s).

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(6) Any Sub-association that seeks to travel within or outside the country shall seek clearance from the Union in writing two weeks before the date of their intended travel.

(7) No Sub-association shall be independent of the Union.

(8) Any Sub-association that expressly or impliedly violates any provision of this constitution shall be dealt with accordingly.

(9) Sub-associations shall only act or function within the limits of their aims and objectives.

(10) The Judicial Tribunal shall be the only competent body to limit, suspend or dissolve a registered Sub-association.

Section 67: Power to setup Committees

(1) The Executive Council shall reserve the right to setup Committee(s) under any Ministry or where necessary and relevant for the purpose of any program, event, activity or ceremony.

(2) The committee(s) referred to in subsection (1) of this section shall be headed by the Minister under the portfolio of whom it was established unless otherwise agreed by the Executive Council.

(3) Membership to the committee(s) shall reflect a fair representation of all schools/ faculties in the University.

(4) The Committee(s) shall for the purpose of their existence have the power to make their own rules which shall not go contrary to this constitution.

(5) The members of the Committee(s) shall only serve for the period or duration of the program, event, activity or ceremony of which they were selected.

(6) No Committee setup under this constitution shall remain permanent or perpetual; it shall only serve for the purpose of which it was established.

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Section 68: Establishment of the Electoral Commission and its composition

(1) There shall be an Electoral Commission which shall be set up by congress and shall serve a term of one (1) academic year. Where a member of the Commission vacates office before the end of the term, such position shall be filled in the next ensuing congress.

(2) The Commission shall consist of ten (10) electoral officers and it shall be headed by a Chairperson.

(3) The Chairperson of the Electoral Commission shall be appointed from among the commission members by the president within one (1) week from the day of approval of the commission members at congress.

(4) The appointment of the chairperson of the Electoral Commission shall be subjected to the approval of the Legislative Body.

(5) If the Legislative Body rejects the person nominated by the president to serve as the chairperson of the Electoral Commission, it shall not again reject the person nominated to replace him or her.

(6) A candidate shall not be qualified to serve in the Electoral Commission if he or she does not have at least two (2) semesters left for study.

Section 69: Functions of the Electoral Commission

(1) The Electoral Commission shall cooperate and work with the Independent Electoral Commission of the Gambia to conduct the elections in the University.

(2) Notwithstanding Subsection (1), the Electoral Commission shall be the only competent body to conduct University of the Gambia Students' Union elections.

(3) The Electoral Commission shall when required conduct the elections for Sub-associations in the University.

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(4) An electoral officer may be removed by Congress on grounds of misconduct, incapacity or abuse of office through a three (3) man investigating panel set up by the Executive Council which shall then report back to congress for decision making and such decision shall be by simple majority.

(5) The Electoral Commission shall name centers at which votes will be cast.

(6) The Electoral Commission shall ensure appropriate structures and mechanisms to eliminate electoral malpractice are put in place.

(7) The Chief Electoral Officer shall, immediately after the counting of the votes, publicly announce the results, all of which shall bear his or her name and signature.

(8) The Electoral Commission shall conduct by-elections for any vacant post in the Union.

(9) The Electoral Commission shall receive all electoral nominations for determination.

(10) The Electoral Commission may accept or reject the nominations of candidates based on the electoral rules and regulations of the Electoral Commission.

(11) The Electoral Commission shall ensure that all students of the University of The Gambia are informed of dates, venues, times and names of nominees for elections and all matters concerning elections in the most appropriate means.

(12) The Commission shall be responsible for general voter education before elections.

(13) Candidates shall demonstrate or evidence a high level of understanding or appreciation for the positions they are vying for to the Electoral Commission and failure to do so shall be a ground to reject the nomination of the candidate concerned.

(14) Candidates may withdraw their candidature by writing to the Chairperson of the Electoral Commission not later than four o'clock (4:00pm) in the afternoon before the date of the election and the Chairperson upon receiving the letter shall honor the withdrawal of the candidate and immediately declare the withdrawal of the candidature of the candidate to the general student body.

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Section 70: Independence of the Electoral Commission

(1) Subject to the provisions of the Constitution, the Electoral Commission shall be independent and shall, in performance of its functions, not be subject to direction or control of any person or any authority.

(2) The Electoral Commission members shall not be accountable to any other authority in the execution of their roles except this constitution and it shall account as so even before the Judicial Tribunal.

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CHAPTER 9: MISCELLANEOUS

Section 71: Awards and Honors

(1) The president in consultation with his or her Executive members may confer awards, honors or merits on deserving students and friends of the University of The Gambia Students' Union

Section 72: Correspondences in the Name of the Union

(1) No member of the Association shall correspond in the name of the students' Union by any form using the name of the Union without the approval of the Executive Body.

Section 73: Code of Conduct of the Executive Body

(1) There shall be a Code of Conduct for the Executive Council of the Union.

(2) The Minister of Justice in consultation with the Executive Council shall Draft a Code of Conduct in accordance with the University of The Gambia's Rules and Regulations.

(3) All members of the Executive Council shall adhere to the Code of Conduct.

Section 74: Oath of Office

(1) All Executive, Legislative Body, Judicial Tribunal, Commission or Committee Members shall take the prescribed oath/pledge as provided under Schedule 2 of this Constitution.

Section 75: Commencement of this Constitution

(1) This constitution will come into effect once it has been adopted by simple majority at congress.

Section 76: Repeal

(1) Upon the adoption of this constitution, ,the constitution of the University of the Gambia students' union 2017' shall cease to apply.

Section 77: Constitutional Review

(a) This Constitution shall not be reviewed within the period of five (5) years after its coming into force.

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(b) The review process shall be initiated by the Executive Body of the Union.

(c) The Executive Body shall in consultation with the Legislative Body establish a Constitutional Review Commission to review this constitution if need be.

Schedule 1

The citation of pledge of commitment shall be recited by every elected, selected and/or nominated member of the Executive Council, the Legislative Body, Judicial Tribunal and the Electoral Commission. **The pledge I**……having been elected/selected/nominated as…….... of the University of the Gambia students' Union do hereby pledge that:

I shall uphold and defend the constitution of the University of The Gambia students' Union.

I shall seek to defend and respect the democratic rights and liberties of all members of the Union.

I shall execute my duties with due diligence and competence without fear or favor, hate or hindrance, and without personal biases.

I shall serve all members equally irrespective of race; creed, color, gender or tribe and I shall not compromise the rights and privileges of any member.

I swear this pledge with full knowledge of my responsibilities and bind myself to the same.

So help me God

Signed by…….. At ……..…..on this.....day of…...20…….. Before me

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